

Amendment No. 1 to HB1289

Todd
Signature of Sponsor

AMEND Senate Bill No. 1247*

House Bill No. 1289

by deleting all language after the caption and substituting:

WHEREAS, people enjoy parks and other outdoor recreational areas because they provide contact with the natural environment and a social environment that offers opportunities to meet with others, all of which help to establish a feeling of community and security; and

WHEREAS, well-designed and well-used parks and recreation areas are a major asset for local communities; however, that asset can become a liability when parks become unsafe and lose their value and benefit to the community; and

WHEREAS, keeping parks and recreation facilities safe is key to community wellness and has a direct relationship to their usage rates; and

WHEREAS, there is a direct relationship between the level of park use and the perception of security. The larger the number of visitors involved in positive activities, the more likely that crime and other types of antisocial behavior are deterred; and

WHEREAS, an emphasis on expanded recreation initiatives will encourage greater use and ultimately create a safer environment in parks and other recreational areas; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Alyssa Lokits Safety Act."

SECTION 2. Tennessee Code Annotated, Title 11, Chapter 24, Part 1, is amended by adding the following as a new section:

11-24-114.

(a) As used in this section:

(1) "Local governmental entity" means a governing body, board, commission, committee, or department of a municipality, county, or county having a metropolitan form of government; and

(2) "Park":

(A) Has the same meaning as defined in § 11-3-101; and

(B) Means all areas of land acquired by a local governmental entity that are dedicated to and forever reserved and administered by the local governmental entity for the recreational and cultural use and enjoyment of the people.

(b) The division of parks and recreation in the department of environment and conservation, in conjunction with the department of environment and conservation, the department of safety, and representatives from local governmental entities, shall develop a uniform safety plan composed of an integrative strategy involving design, programming, maintenance, and citizen involvement to create and maintain safer spaces in parks.

(c) In developing the safety plan under subsection (b), the entities and representatives shall consider the following factors:

(1) Locating programmed activities near the park perimeter, beside an entrance, or along a main pedestrian path;

(2) Locating food concessions at the park edge that serve both the nearby streets and the park;

(3) Ensuring that park activities include a human presence from early morning to evening;

(4) Creating programming and the physical design of the park to encourage use of the park during the evenings;

(5) Developing activities beyond those for organized sports facilities and playgrounds;

- (6) Offering a variety of tours or events that will encourage more widespread use of parks and increase positive uses;
- (7) Involving park users in the design or redesign of park spaces;
- (8) Creating clear and understandable signage to enhance the feeling of safety;
- (9) Using formal and informal surveillance to reduce vandalism, inappropriate activities, and feelings of isolation;
- (10) Using lighting to enhance perceptions of safety, as improved lighting and increased legitimate activity allow for greater nighttime surveillance;
- (11) Establishing clear sightlines to give the perception of actual safety so that people can see their surroundings and the presence of others;
- (12) Maximizing physical access by providing users with a choice of legible routes to and from park areas;
- (13) Creating diversity in the form, color, and texture of landscape elements to create an environment that attracts higher usage;
- (14) Creating signage in the form of maps and descriptive text to promote a greater sense of safety;
- (15) Providing access to security telephones and park staff to provide a greater sense of wellbeing and safety;
- (16) Fostering a sense of ownership and pride through citizen involvement to build a constituency of users with an interest in keeping parks safe;
- (17) Enforcing rules for inappropriate activities to prevent cycles of withdrawal and reductions in positive use; and
- (18) Evaluating the availability of emergency communication systems, including call boxes or other rapid-reporting mechanisms for park users.

(d) Upon request, all appropriate state and local governmental agencies shall provide assistance to the entities and representatives listed in subsection (a) in the development of the safety plan.

(e) The entities and representatives shall submit the complete safety plan, including any proposed legislation and reports, to the governor, the general assembly, the legislative librarian, the municipal technical advisory service (MTAS), and the county technical advisory service (CTAS) no later than February 1, 2027.

(f) This section is repealed July 1, 2028.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.